

to vacate a dismissal entered at the parties' request in order to regain jurisdiction to enter judgment.

“An action which is voluntarily dismissed in its entirety is no longer pending. [Citation.]” (*Viejo Bancorp, Inc. v. Wood* (1989) 217 Cal.App.3d 200, 206 (*Viejo*)). Even if the Court finds that Respondent breached the settlement agreement, “the court’s resolution of this factual issue [would] not permit it to enter judgment in the [dismissed] action. In short, in the absence of a motion under Code of Civil Procedure section 473 to vacate the dismissal, the court [is] without subject matter jurisdiction of the [dismissed] action.” (*Ibid.*)

As noted above, On May 15, 2025, the Court, on stipulation of the parties, dismissed the instant action by signing an order proposed by Plaintiff. Pursuant to the holding in *Viejo*, the Court is without jurisdiction to enter judgment in this action, pursuant to Section 664.6 or otherwise. This is not to say that Plaintiff is without rights to assert a claim against Defendant for breach of the settlement agreement. But this Court does not have jurisdiction to consider the claim in this action. (See *Viejo, supra*, 217 Cal.App.3d at 206.)

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University Credit Union v. Kamaladevi Zamora

25CV000637

**DEFENDANT’S MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF
UNIVERSITY CREDIT UNION AND FOR SANCTIONS**

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Kamaladevi Zamora (“Defendant”) moves, pursuant to Code of Civil Procedure 2025.230,² to compel the further deposition testimony of Plaintiff University Credit Union (“Plaintiff”). Defendant further moves, pursuant to section 2023.030, for sanctions against Plaintiff. Although not in the Notice of Motion, the specific relief Defendant seeks through the moving papers is an order compelling Plaintiff to produce “Frank Perez for further deposition” or produce a “properly prepared” and “true” person most qualified (“PMQ”) who is able to speak on all categories in the Notice of Deposition, served February 24, 2026, and who is familiarized with all produced documents. (See Mem., 1:19-20, 5:23, 14:17-27.)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

To the extent Defendant seeks a further deposition of Mr. Perez and/or an order that Plaintiff's counsel not obstruct a certain line of questioning,³ such requests are governed by section 2025.480, subdivision (a). The Notice of Motion does not cite to this code section, nor does the Memorandum discuss or analyze the standards therefor. Nevertheless, the Court is aware that a motion under section 2025.480, subdivision (a) must be accompanied by a separate statement identifying *verbatim* the specific questions and responses in dispute and the legal reasons a further response is required, pursuant to Rules of Court, rule 3.1345(a).

Defendant's instant motion is not accompanied by a Separate Statement. Nor does Defendant's motion provide a concise summary of the disputed questions and responses. Defendant's unauthenticated⁴ inclusion of Mr. Perez's 126-page deposition transcript is unauthorized and unhelpful to the Court's review of the dispute. (Rules of Court, rule 3.1345(c) ["A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response."].)

Based on the foregoing procedural defects, the request to compel the further deposition of Mr. Perez is DENIED.

Defendant's Proposed Order contains relief not identified in the Notice of Motion, nor adequately discussed in the Memorandum; namely, Paragraph 3 "Outstanding Documents" and Paragraph 4 "Continued Time." For this reason, the foregoing relief is DENIED.

B. LEGAL STANDARD

"Any party may obtain discovery ... by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (§ 2025.010.)

"If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent." (§ 2025.230.)

If the subject matter of the questioning is clearly stated, the burden is on the entity, not the examiner, to produce the right witnesses. And if the particular officer or employee designated lacks personal knowledge of all the information sought, that person must find out from those who do. (*LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948 [citing *Weil & Brown et al.*,

³ In Reply, Defendant asserts: "It does not ask the Court to rule on individual deposition questions." (Reply, 2:15-16.)

⁴ Exhibit E to the Declaration of Sacha Maniar appears to be Mr. Perez's deposition transcript, referenced in Defendant's Memorandum. However, the Maniar Decl. does not authenticate, much less address, Exhibit E.

Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2001), § 8:474]; *Maldonado v. Sup. Ct.* (2002) 94 Cal.App.4th 1390, 1390-96 [same].) However, “[n]o California case directly addresses the scope of the organization’s obligation to prepare its designee.” (Block, Dunne on Depositions in California (Oct. 2024), Ch. 14, § 14:5.)

Moreover, “[i]t is unclear whether an organization must produce multiple *qualified* witnesses if they exist or only the one who is *most* qualified. There are no answers to these questions in published California decisions. [¶] ... California law is not developed in this area. By use of the term ‘qualified’ rather than the term ‘knowledgeable’ [as used by federal statutes], California’s legislators presumably wanted to avoid discovery disputes over the issue of whether a given witness is the most knowledgeable within an organization about a given subject. Plainly, two witnesses might have knowledge about different facts such that neither is ‘most knowledgeable.’ As such, the decision is left to the organization which among those witnesses with some knowledge is the most qualified to answer questions for the organization.” (Block, Dunne on Depositions in California (Oct. 2024), Ch. 14, § 14:4.)

Defendant has not provided, nor has the Court been able to locate, any statutory authority for a motion to compel related to section 2025.230 or a PMQ Deposition. However, “[a]pparently, a motion would lie to compel the corporation to designate someone having the information requested.” (Weil & Brown, *et al.*, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 8E-3, § 8:476.)

That said, the Weil & Brown treatise provides sound practice guidance as follows: “The entity’s duty to designate the ‘most qualified’ person to testify on its behalf has limited utility. [¶] It may be useful if all you need is to authenticate corporate records or proceedings. But it may not pin down exactly who knows what, or did what, within the organization. I.e., the witness designated as the ‘most qualified’ by the corporation may not have the information you require. So you may have to take additional depositions to find out what you need to know. [¶] Therefore, if the matter involved is critical to your case, do not rely on the entity’s duty to designate the ‘most qualified’ officer or employee. It is better practice to do your own investigation or send out interrogatories asking who in the organization has knowledge of the particular facts you seek; and take that person’s deposition.” (*Id.*, § 8:477.)

C. DISCUSSION

Here, the February 24, 2026 Notice of PMQ Deposition includes 27 broad categories of examination. While the motion identifies certain categories for which the designees purportedly lacked personal knowledge, there is no indication that the designees lacked personal knowledge of *all* the information sought. Thus, this does not seem to meet the standard contemplated in *LAOSD Asbestos Cases* or *Maldonado*.

Moreover, Defendant’s arguments that the prior deponents lacked personal knowledge on certain categories are conclusory and difficult to follow. First, the outstanding categories for which the designated PMQs purportedly lack personal knowledge are not clearly identified. In this context, the Court would have a difficult time determining the categories for which Plaintiff would need to designate new PMQs. Second, there is insufficient evidentiary support and

analysis as to why the prior testimony does not meet the standard under section 2025.230. Here, a Separate Statement would be helpful. (See Rules of Court, rule 3.1345.) Third, Defendant appears to be applying a higher standard than that required under section 2025.230—that the deponents testify “as to those matters to the extent of any information known or reasonably available to the deponent.” (§ 2025.230.) For example, the fact that Ms. Brady testified she does “not specialize in origination” does not necessarily render her an improper PMQ on core origination/underwriting topics. Moreover, testimony identifying someone else as “more knowledgeable” on a topic does not negate that the deponent is the “most qualified” on the topic. Given the lack of guidance on the standard for PMQ depositions and on an entity’s duty to prepare the PMQ, the Court is reluctant to adopt Defendant’s proffered standards which seem to exceed the bounds of section 2025.230.

Based on the foregoing, the motion to compel Plaintiff to produce a “properly prepared” and “true” PMQ who is able to speak on all categories in the February 24, 2026 Notice of Deposition and who is familiarized with all produced documents is DENIED.

The parties shall continue to meet and confer to ascertain the appropriate designee(s) on each of the outstanding 27 categories contained within the Notice of Deposition. Defendant is also urged to make use of the guidance set out in the Weil & Brown treatise set forth above in section C. To the extent the parties are unable to reach an informal resolution, either may bring an appropriate motion, accompanied by a declaration setting out in detail the parties’ meet and confer efforts. To the extent Defendant subsequently moves to compel a PMQ designation, any such motion shall (1) specify, in the Notice of Motion, the particular category/ies of testimony for which they seek a designation, and (2) be accompanied by a Separate Statement in compliance with Rules of Court, rule 3.1345(c). The Separate Statement should, at minimum, (1) be separated by category of testimony and (2) provide legal and factual reasons why an additional designation on such category is required—specifically, why the previously designated PMQ(s) are not “qualified” on the category, by identifying *verbatim* the questions and responses of the testimony that demonstrates the alleged insufficiency.

The Court recognizes Plaintiff’s argument in Opposition that Defendant is not entitled to more than one deposition in this Limited Civil Action case. While Limited Civil Actions are governed by section 94 limiting each party to one deposition as to each adverse party, “a deposition of an organization shall be treated as a single deposition even though more than one person may be designated or required to testify pursuant to Section 2025.230.” (§ 94, subd. (c).) Thus, Plaintiff’s attempt to limit the PMQ depositions lacks merit.

D. SANCTIONS

Defendant’s request for sanctions pursuant to section 2023.030 is DENIED on the ground that Defendant’s Notice of Motion fails to identify the type of sanction sought (see § 2023.040) and further fails to state the applicable “misuse of the discovery process” under section 2023.010 that has been violated. These defects cannot be remedied through inclusion, for the first time, in Reply.

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****at 9:30 a.m.****

Ammar Sfeir et al v. Monsanto Company et al

26CV000107

- [1] VERIFIED APPLICATION OF COLIN WATTERSON TO APPEAR AS COUNSEL PRO HAC VICE FOR PLAINTIFFS AMMAR AND RENE SFEIR

TENTATIVE RULING: The application is GRANTED.

- [2] VERIFIED APPLICATION OF JOANNA R. MCKINNEY TO APPEAR AS COUNSEL PRO HAC VICE FOR PLAINTIFFS AMMAR AND RENE SFEIR

TENTATIVE RULING: The application is GRANTED.